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2026.PHHC.087088



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33269-2026
Decided On: 09.06.2026**

**SEWAK SINGH @ DHALLU SINGH @ BHALLA SINGH
....PETITIONER(S)**

VERSUS

STATE OF PUNJAB AND ANR

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. LS Sidhu, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.99 dated 29.04.2026 under Section 109, 115(2), 3(5) of BNS, 2023 (equivalent of Sections 307, 323, 34 of IPC, 1860) and Section 27 of Arms Act, 1959 registered at Police Station Talwandi Sabo, District Bathinda.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the dispute arose between the maternal uncle (mama) and nephew (bhanja), and that the matter

has since been amicably settled between the parties with the intervention of the Panchayat, respectable persons, and common relatives.

It is further submitted that no overt act or specific injury has been attributed to the petitioner. The only allegation against him is that, when co-accused Balkaran Singh allegedly inflicted a gandasa blow on the right side of the complainant's back, the petitioner allegedly exhorted him by saying to give another blow and finish the complainant. It is also submitted that the said co-accused has already been granted anticipatory bail by this Court vide order dated 27.05.2026 (P-4).

The petitioner further states that he is ready and willing to join the investigation and cooperate fully with the same.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Yatin Bunker, AAG Punjab accepts notice on behalf of the respondent-State and vehemently opposes the prayer made by learned counsel for the petitioner on the ground that serious allegations have been attributed upon the petitioner.

3. Analysis

Having considered the submissions made by learned counsel for the parties and perused the record, it is observed that the dispute arose out of a familial discord between a maternal uncle and nephew, which has now been stated to have been amicably resolved between the parties with the intervention of respectables and Panchayat members.

It further appears that no specific overt act or injury has been attributed to the petitioner, except an allegation of exhortation at the time of the occurrence. The co-accused, who is stated to have inflicted the injury, has

already been granted anticipatory bail by this Court vide order dated 27.05.2026 (P-4).

The petitioner has further undertaken in para 11 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*